IN THE HIGH COURT OF JUSTICE
BUSINESS AND PROPERTY COURTS OF ENGLAND AND WALES
TECHNOLOGY AND CONSTRUCTION COURT (KBD)
Claim No. HT-2026-000142

B E T W E E N:

MAYBROOK AGGREGATES LIMITED

Claimant

- and -

HELMSWORTH PLANT HIRE LIMITED

Defendant

PARTICULARS OF CLAIM

1. The Claimant, Maybrook Aggregates Limited ("Maybrook"), is a company incorporated in England and Wales which operates a limestone quarry and aggregates production business at Aldforth, North Yorkshire.

2. The Defendant, Helmsworth Plant Hire Limited ("Helmsworth"), is a company incorporated in England and Wales which carries on the business of supplying and hiring out mobile crushing, screening and materials-handling plant.

3. By an agreement in writing dated 14 March 2025 (the "Agreement"), Helmsworth agreed to supply to Maybrook one HelmCrush HC-450 tracked mobile crushing and screening plant, serial number HC450-2231 (the "Plant"), on a 36-month contract-hire basis at a hire charge of £18,500 per month, together with commissioning and a full maintenance package.

4. It was an express term of the Agreement that:

   4.1 by clause 7.1, the Plant would be of satisfactory quality and fit for the purpose of the continuous primary and secondary crushing of quarried limestone, that purpose having been made known to Helmsworth;

   4.2 by clause 7.3, the Plant was capable of a sustained throughput of not less than 320 tonnes per hour of 0/63mm crushed limestone aggregate;

   4.3 by clause 9.1, Helmsworth would keep the Plant in good working order and would attend to and remedy any reported breakdown within 24 hours of a report being made.

5. Further or alternatively, there were implied into the Agreement terms under sections 9 and 10 of the Consumer Rights Act and the Supply of Goods and Services Act 1982 (as applicable) that the Plant would be of satisfactory quality and reasonably fit for its purpose.

6. Prior to and for the purpose of inducing Maybrook to enter into the Agreement, Helmsworth made the following representations of fact (the "Representations") in its written quotation dated 6 February 2025 and accompanying technical data sheet: (a) that the Plant was capable of a sustained throughput of 320 tonnes per hour; and (b) that the Plant was "fit for continuous quarry duty". The Representations were false.

7. The Plant was delivered to and commissioned at Maybrook's Aldforth quarry on 31 March 2025.

8. In breach of clauses 7.1, 7.3 and 9.1 of the Agreement and contrary to the implied terms, the Plant was not of satisfactory quality, was not fit for its purpose, was not capable of the represented throughput, and suffered repeated failures, particulars of which are set out below.

Whitfield Carter LLP is a limited liability partnership registered in England and Wales (OC382214). Confidential and may be legally privileged.

PARTICULARS OF BREACH

9. On 22 April 2025 the primary jaw-crusher toggle bearing failed, rendering the Plant inoperable for 9 working days.

10. On 19 May 2025 the main screen deck cracked, and on 24 June 2025 the screen drive bearing seized, causing stoppages of 11 and 14 working days respectively.

11. Between 28 July and 21 August 2025 the jaw crusher suffered a main-shaft bearing failure of such severity that the crusher assembly required replacement, rendering the Plant inoperable for a further 25 working days.

12. When operating, the Plant did not achieve a sustained throughput in excess of approximately 200 tonnes per hour.

13. In further breach of clause 9.1, Helmsworth failed to attend within 24 hours of the breakdowns reported on 22 April, 19 May, 24 June and 28 July 2025, the average attendance time being not less than 5 working days.

14. By reason of the said breaches and misrepresentation, Maybrook has suffered loss and damage.

PARTICULARS OF LOSS AND DAMAGE

14.1 Cost of hiring in replacement crushing and screening capacity (mobile contractor crushing) for 59 working days: £472,000.

14.2 Cost of emergency repairs paid by Maybrook which were Helmsworth's responsibility under clause 9: £86,500.

14.3 Lost profit on aggregate Maybrook was unable to produce and sell during the periods of stoppage and reduced throughput: £742,000.

14.4 Additional management and labour time, abortive haulage and demurrage: £119,500.

14.5 Total: £1,420,000.

15. Maybrook was induced to enter into the Agreement by, and relied upon, the Representations pleaded at paragraph 6 above. Had the Representations not been made, Maybrook would not have entered into the Agreement. Maybrook claims damages for misrepresentation under section 2(1) of the Misrepresentation Act 1967, the burden being on Helmsworth to prove that it had reasonable grounds to believe and did believe the Representations to be true.

16. Maybrook claims interest on the sums found due pursuant to section 35A of the Senior Courts Act 1981 at such rate and for such period as the Court thinks fit.

AND the Claimant claims:

- Damages in the sum of £1,420,000;
- Interest pursuant to section 35A of the Senior Courts Act 1981;
- Costs.

STATEMENT OF TRUTH

The Claimant believes that the facts stated in these Particulars of Claim are true. I am duly authorised by the Claimant to sign this statement.

Signed: _____ Name: Geoffrey Maybrook Position: Managing Director

Dated this 14th day of January 2026.

Whitfield Carter LLP, 22 Bishopsgate, London EC2N 4BQ – Solicitors for the Claimant